Supreme Court, U.S.
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No. 95-879

In The
Supreme Court of the United States
October Term, 1995

THE CITY OF EDMOND, A MUNICIPAL CORPORATION, AND **RANDEL SHADID**, IN HIS CAPACITY AS MAYOR OF THE CITY OF EDMOND, AND **CHARLES LAMB, GARY MOORE, RON MERCER** AND **KAY BICKHAM** IN THEIR OFFICIAL CAPACITIES AS MEMBERS OF THE CITY COUNCIL OF THE CITY OF EDMOND, OKLAHOMA,
Petitioners,

v.

DR. WAYNE ROBINSON, CURTIS BATTLES, WENDELL MILLER, BARBARA ORZA, AND **MARTIN FELDMAN,**
Respondents.

On Petition for A Writ of Certiorari to the United States Court of Appeals for the Tenth Circuit

RESPONDENTS' BRIEF IN OPPOSITION TO PETITION FOR WRIT OF CERTIORARI

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QUESTIONS PRESENTED

1. Does the Seal of the City of Edmond, Oklahoma, which inculcates a readily identifiable religious symbol (a Latin or Christian cross), violate the *Establishment Clause* of the *First Amendment* as an impermissible endorsement of religion?

2. Is there an actual conflict of law among the circuit courts regarding the inculcation of religious symbols on official governmental seals which requires resolution by this Court?

LIST OF PARTIES

The parties to this proceeding on *Petition for Writ of Certiorari* are:

PETITIONERS:

Defendants in the federal district court and Appellees in the United States Court of Appeals for the Tenth Circuit:

THE CITY OF EDMOND, A municipal corporation, and RANDEL SHADID, in his capacity as Mayor of the City of Edmond, and CHARLES LAMB, GARY MOORE, RON MERCER and KAY BICKHAM, in their official capacities as members of the City Council of the City of Edmond, Oklahoma.

SUCCESSOR PETITIONERS (Pursuant to **Rule 35(3)** of the **Rules of the Supreme Court**):

Pursuant to **Rule 35(3)** of the **Rules of the Supreme Court**, the following persons are substituted as parties in their official capacities:

BOB RUDKIN is substituted for RANDEL SHADID as Mayor of the City of Edmond;

STEVE KNOX and BARRY RICE are substituted for RON MERCER and KAY BICKHAM in their official capacities as members of the City Council of the City of Edmond.

Party(ies) previously dismissed in the federal district court by agreement of the parties:

MAX SPEEGLE, former City Manager of the City of Edmond who has now been succeeded in office by LEONARD MARTIN (No longer a party).

Party(ies) previously substituted in their official capacity by resignation or end of term:

TOM KENNEDY, former City Councilmember;
JIM ROBERTS, former City Councilmember.

RESPONDENTS:

Plaintiffs in the federal district court, Appellants in the United States Court of Appeals for the Tenth Circuit and now Respondents in this proceeding:

DR. WAYNE ROBINSON
CURTIS BATTLES
WENDELL MILLER
BARBARA ORZA and
MARTIN FELDMAN.

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I. A CITY SEAL THAT INCORPORATES A "VISIBLE AND CLEARLY DEFINED" LATIN OR CHRISTIAN CROSS IMPERMISSIBLY PROMOTES AND ENDORSES AN ESTABLISHMENT OF RELIGION WHEN THE CITY: OBTAINS TRADEMARK REGISTRATION FOR THE SEAL TO PERPETUATE ITS EXCLUSIVE USE BY THE CITY; PROMOTES IDENTIFICATION OF THE SEAL WITH THE CITY BY USING THE SEAL ON CITY CORRESPONDENCE, DOCUMENTS AND VEHICLES; AND USES THE SEAL TO EXCLUSIVELY IDENTIFY CITY PROPERTY AND PERSONNEL 14

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No. 95-879

In The

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October Term, 1995

THE CITY OF EDMOND, A MUNICIPAL CORPORATION, AND **RANDEL SHADID**, IN HIS CAPACITY AS MAYOR OF THE CITY OF EDMOND, AND **CHARLES LAMB**, **GARY MOORE**, **RON MERCER** AND **KAY BICKHAM** IN THEIR OFFICIAL CAPACITIES AS MEMBERS OF THE CITY COUNCIL OF THE CITY OF EDMOND, OKLAHOMA,

Petitioners,

v.

DR. WAYNE ROBINSON, **CURTIS BATTLES**, **WENDELL MILLER**, **BARBARA ORZA**, AND **MARTIN FELDMAN**,

Respondents.

RESPONDENTS' BRIEF IN OPPOSITION TO PETITION FOR WRIT OF CERTIORARI

PRELIMINARY STATEMENT

DR. WAYNE ROBINSON, CURTIS BATTLES, WENDELL MILLER, BARBARA ORZA, and MARTIN

FELDMAN, Respondents,[1] come before this Court and respectfully request that this Court deny Petitioners'[2] *Petition for Writ of Certiorari* which seeks review of a decision of the Tenth Circuit. That decision is reported as *Robinson, et al., v. City of Edmond, et al.*,[3] 68 F.3d 1226, 1995 WL 611332 (10th

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[1]Respondents are plaintiffs in the district court and appellants in the Tenth Circuit. They will be referenced individually by name or collectively as "Respondents" or "Plaintiffs."

[2]Petitioners are defendants in the district court and appellees in the Tenth Circuit. In this *Response*, Petitioners will be referred to as "Defendants," "Petitioners" or "Defendant City."

Petitioners failed to name as "successors in office" three substituted Defendants in their official capacity as required by **Rule 35(3)** of the **Rules of the Supreme Court of the United States**. A complete list of all prior and substituted parties (including previously dismissed parties) appears as a *List of Parties* on Page ii of this *Response*. Although Petitioners used in the style of their *Petition* only the names of the official capacity Defendants from the appellate level, failed to name substituted parties, and incorrectly stated that "[t]here are no other parties to this action" (*Pet. Writ Cert.*, p. ii), Respondents adopt the same style in this *Response* to minimize confusion.

[3] Inexplicably, Petitioners join Barbara Orza to the extension of litigation into this Court yet seek no review of any issue related to the only appeal in which Ms. Orza participated in the Tenth Circuit, No. 95-6008 (the appeal of sanction of attorneys fees and costs imposed against Plaintiffs).

Ms. Orza, a master's degree certified midwife and instructor at the University of Oklahoma School of Medicine, was a Plaintiff in the district court. Because her employment moved out of state and this matter was called for nonjury trial with little lead time, she was unable to attend the trial and did not testify. The City would not stipulate to her testimony by deposition and she was dismissed. (See *Pet. Writ Cert.*, Footnote 1, p. 20a)

Because she was unable to testify, Ms. Orza was not included in the merits appeal, No. 94-6237, but did participate in the appeal of sanctions (attorneys fees and costs) imposed by the district court because she was

(continued...)

Cir., October 17, 1995) and is reprinted in the *Petition for Writ of Certiorari* (**Appdx A**, p. 1a). The unreported federal district court decision is reprinted in the *Petition* (**Appdx**, p. 20a).

In deciding this case, the Tenth Circuit made a straightforward application of its prior decisions in faithful consideration of the decisions of this Court. Despite Petitioners' enthusiasm for bringing circuits into conflict, there is no material or substantial difference in law in decisions of the Fifth, Seventh and Tenth Circuits that requires resolution by this Court.

The Tenth Circuit, contrary to Petitioners' claim, does not define a new test for applying the *Establishment Clause* of the *First Amendment* to religious symbols on public emblems. Rather, the Circuit continues to consider such questions on a case by case basis (see *Pet. Writ Cert.*, pp. 16a-17a (". . each case must turn on its own facts, and . . . the particular context and setting of a particular governmental seal or logo is relevant to its fate when challenged under the Establishment Clause. . .")), and to apply this Court's interpretation of the

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[3](...continued)
included in the sanction judgment. (See *Pet. Writ Cert.*, Footnote 1, pp. 3a-4a; 68 F.2d at 1228-9) The Tenth Circuit summarily reversed the judgment of sanctions in 95-6008. (*Pet. Writ Cert.*, p. 18a; 68 F.2d at 1233) Petitioners have not preserved as a question, nor have they included, the original sanction order entered by the district court as a part of their Petition and appear therefore to have abandoned an appeal of the reversal of sanctions. See *Capitol Square Review and Advisory Bd. v. Pinette*, 30 F.3d 675 (6th Cir., 1994) *affirmed*, 115 S.Ct. 2440, 2445 (1995)(No review for issue not decided by circuit court nor presented to Supreme Court); also see **Rule 14(1)(a)** of the **Rules of the Supreme Court of the United States** (Only questions set out in the petition, or fairly included therein, will be considered by the Court).

Establishment Clause of the *First Amendment* as it has evolved over the past twenty-five years. (See *Pet. Writ Cert.*, pp. 7a-14a)

The Tenth Circuit's statement and application of the law are a faithful review of this Court's precedents, including the relevant prongs enunciated in *Lemon v. Kurtzman*, 403 U.S. 602, 91 S.Ct. 2105, 29 L.Ed.2d 745, *reh. den.* 404 U.S. 876, 92 S.Ct. 24, 30 L.Ed.2d 123 (1971); *Lynch v. Donnelly*, 465 U.S. 668, 104 S.Ct. 1355, 79 L.Ed.2d 604 (1984); *Allegheny County v. Greater Pittsburgh ACLU*, 492 U.S. 573, 109 S.Ct. 3086, 106 L.Ed.2d 472 (1989); and *Marsh v. Chambers*, 463 U.S. 783, 103 S.Ct. 3300, 77 L.Ed.2d 1019 (1983).[4]

The "bright line" of which these Petitioners complain (*Pet. Writ Cert.*, pp. 5-6, 9, 14-15) is more their invention than the Tenth Circuit's rule. The only "bright line" that the Tenth Circuit identifies is that it will follow its precedents and those of similar cases from the Seventh Circuit because there is no principled, demonstrable difference between the physical depictions of the Seal of the City of Edmond and the seals at issue in prior decisions by the Tenth[5] or Seventh[6] Circuits.

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[4]Petitioners incorrectly cite *Marsh* as 103 S.Ct. 330.

[5]See *Friedman v. Board of County Commissioners of Bernalillo County*, 781 F.2d 777 (10th Cir., 1985) *cert. den.* 476 U.S. 1169, 106 S.Ct. 2890, 90 L.Ed.2d 978 (1986) and *Foremaster v. City of St. George*, 882 F.2d 1485 (10th Cir. 1989), *cert. den.* 495 U.S. 910, 110 S.Ct. 1937, 109 L.Ed.2d 300 (1990).

[6]*Kuhn v. City of Rolling Meadows*, 927 F.2d 1401 (7th Cir., 1991) *reh. den.* 934 F.2d 141 (7th Cir., 1991) *cert. den.* 112 S.Ct. 3025, 120 L.Ed.2d 897 (June 29, 1992) *reh. den.* 113 S.Ct. 20, 120 L.Ed.2d 946 (Sept. 4, 1992); *Harris v. City of Zion, Lake County, Ill.*, 927 F.2d 1401 (7th Cir., 1991) *reh. den.* 934 F.2d 141 (7th Cir., 1991), *cert. den.* 112 S.Ct. 3054, 120 L.Ed.2d 920 (June 29, 1992) *reh. den.* 113 S.Ct. 20, 120 L.Ed.2d 946 (Sept. 4, 1992).

Nor does the Tenth Circuit's decision here bring it into a conflict with the Fifth Circuit sufficient to merit consideration by this Court. Both the Tenth Circuit and the Fifth Circuit consider these cases of religious imagery in the specific factual contexts of their respective appearances.[7]

This Court previously denied certiorari in each of these cases.[8] Petitioners offer no compelling reason why the question they now raise is any more susceptible to consideration than similar questions were over three years ago. No argument proffered by Petitioners justifies acceptance of certiorari as to *Robinson* over and above the same or similar issues presented at the time of denial of certiorari in *Harris v. City of Zion*, *Kuhn v. City of Rolling Meadows* and *Murray v. City of Austin*.

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[7] See *Murray v. City of Austin, Texas*, 947 F.2d 147 (5th Cir., 1991) *cert. den.*, 112 S.Ct. 3028, 120 L.Ed.2d 899 (June 29, 1992). Without debating the correctness of that decision, Plaintiffs claim that *Murray* and this case arguably are distinguishable on their facts. In *Murray* the cross on the Austin, Texas seal is almost lost in the background of the overall image by reason of its relative size. (See Figure, p.25) It is not the dominant image of the cross as represented on the Edmond Seal. Additionally, while the Austin seal was an adaptation of the historical "coat of arms" of Stephen Austin, Edmond draws upon no such clear historical legacy for the cross on its Seal. Instead, Defendants advance self-serving declarations about general historical contexts, claims contradicted by contemporary writings. The cross on the Edmond Seal derives from **no** particular occurrence in the history of Edmond, but is instead a simple representation of a traditional Christian symbol created by Frances Bryan, its designer.

[8]In fact, denials of certiorari of *Kuhn v. City of Rolling Meadows*, *Harris v. City of Zion* and *Murray v. City of Austin* all occurred on the same day, June 29, 1992. See Footnotes 6 and 7. *Kuhn* and *Murray* were determined on questions of "effect" and "endorsement." *Harris* included "purpose." The instant case was also decided on "effect" and "endorsement" and not on any issue of "purpose."

As such, this case falls far outside the boundaries of this Court's **Rule 10**.[9] Although this Court has not decided the precise issues raised by Petitioners' claim, the decision by the Tenth Circuit applies properly stated rules of law from this Court's decisions, is consistent with its own precedents, and is not in critical division with other circuit courts, nor is there any serious departure from accepted principles that requires the superintending force of this Court.

[9]Amended **Rule 10** (effective October 2, 1995) provides in part:

> Review on a writ of certiorari is not a matter of right, but of judicial discretion. A petition for a writ of certiorari will be granted only for compelling reasons. The following, although neither controlling nor fully measuring the Court's discretion, indicate the character of the reasons the Court considers:
>
> (a) a United States court of appeals has entered a decision in conflict with the decision of another United States court of appeals on the same important matter; . . . or has so far departed from the accepted and usual course of judicial proceedings, or sanctioned such a departure by a lower court, as to call for an exercise of this Court's supervisory power;
>
> - - - - -
>
> (c) a state court or a United States court of appeals has decided an important question of federal law that has not been, but should be, settled by this Court, or has decided an important federal question in a way that conflicts with relevant decisions of this Court.
>
> A petition for a writ of certiorari is rarely granted when the asserted error consists of erroneous factual findings or the misapplication of a properly stated rule of law.

QUESTIONS PRESENTED

1. Does the Seal of the City of Edmond, Oklahoma, which inculcates a readily identifiable religious symbol (a Latin or Christian cross), violate the *Establishment Clause* of the *First Amendment* as an impermissible endorsement of religion?

2. Is there an actual conflict of law among the circuit courts regarding the inculcation of religious symbols on official governmental seals which requires resolution by this Court?

STATUTORY AND CONSTITUTIONAL PROVISIONS

Amendment I.[10] *Constitution of the United States*

> Congress shall make no law respecting an establishment of religion, or prohibiting the free exercise thereof; or abridging the freedom of speech, or of the press, or the right of the people peaceably to assemble, and to petition the Government for a redress of grievances. (Ratified effective December 15, 1791)

[10]The phrase "Religious and Political Freedom" which Petitioners include in their indented recitation of the *First Amendment* (*Pet. Writ Cert.*, p. 2), although aspirationally noble, appears nowhere in the original text of the first Ten Amendments to the *Constitution of the United States*.

***Amendment XIV*. Section 1.** *Constitution of the United States*

> All persons born or naturalized in the United States and subject to the jurisdiction thereof, are citizens of the United States and of the State wherein they reside. No State shall make or enforce any law which shall abridge the privileges or immunities of citizens of the United States; nor shall any State deprive any person of life, liberty, or property, without due process of law; nor deny to any person within its jurisdiction the equal protection of the laws. (Ratified effective July 9, 1868)

United States Code, Title 42:

***§1983**. Civil action for deprivation of rights*

> Every person who, under color of any statute, ordinance, regulation, custom, or usage, of any State or Territory or the District of Columbia, subjects, or causes to be subjected, any citizen of the United States or other person within the jurisdiction thereof to the deprivation of any rights, privileges, or immunities secured by the Constitution and laws, shall be liable to the party injured in an action at law, suit in equity, or other proper proceeding for redress. For the purposes of this section, any Act of Congress applicable exclusively to the District of Columbia shall be considered to be a statute of the District of Columbia. (R.S. § 1979; Pub. L. 96-170, § 1, Dec. 29, 1979, 93 Stat. 1284.)

COUNTER-STATEMENT OF THE CASE

Respondents do not agree that the statement of the case presented by Petitioners is an accurate statement of facts material to consideration of the questions presented by this case. While the Tenth Circuit's recitation of facts is a reliable statement of those facts necessary to its decision (*Pet. Writ Cert.*, pp. 3a-6a), Petitioners have "charged" their statement of the facts with irrelevant insinuations and factual inaccuracies.

Respondents, mindful of their obligation under **Rule 15.2** of the **Rules** of this Court to correct any "perceived misstatement of fact or law in the Petition that bears on what issues properly would be before the Court if certiorari were granted," respectfully draw the Court's attention to Petitioners' inaccurate recitations, even as Respondents contend they are, in part, irrelevant.

In 1965, the City of Edmond City Council declared a contest to select a City Seal. It was sponsored by a local paper, the *Edmond Sun*, and prize money was funded by the City.[11] (Tr. 317 (Bryan); Tr. 340, 350 (Priest)) The minutes of the City Council meetings do not reflect any criteria for contest entries. (Tr. 354, (Priest); (Res. Appdx., pp. 8a-9a); See **Applt. Appdx.**- Vol. 1, Pl. Exs. 16, 17, 19, 20, 21 (Excerpts of City Council Minutes for 7/6/65, 8/16/65, 9/3/65)) Other sources of the time provide the only substantive record of entry rules. Newspaper articles announcing the contest describe entry criteria as ". . . black India ink on the whitest paper available" ((Res. Appdx.,

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[11]References in this *Response* to the Transcript of Nonjury Trial Proceedings on May 24 and May 25, 1994, will be as follows: (Tr. ____, (Witness Name, if appropriate)). Respondents also include an Appendix of some exhibits introduced into evidence.

pp. 10a-14a); **Applt. Appdx.**-Vol. 1, Pl. Ex. 122) or " . . . factors which make Edmond the finest small city in Oklahoma -- her birth in the Run of '89, the college, and the culture, commerce, agriculture and downright friendliness of her people." (**Applt. Appdx.**-Vol. 1, Pl. Ex. 123) After the contest closed, another article characterized the submitted entries as follows, "Most of the entries stressed Edmond's cultural and commercial factions, its 'churchiness,' and the friendliness of its residents. Almost all entries included in their designs a sketch of Old North tower." (**Applt. Appdx.**-Vol. 1, Pl. Ex. 124) If, as Petitioners appear to urge in their *Statement of the Case*, the criteria were exclusively "historical," it was a secret well hidden from public announcements of the contest.

Plaintiffs challenged assertions by Jerry Priest (a City Councilmember at the time of the contest to select a Seal) that the object of the Seal contest was a historical depiction of the beginning of Edmond in the Land Run of 1889. Priest could not explain the failure to mention any of these criteria in the official minutes of council meetings and announcements and other accounts of the contest published in local newspapers.

Petitioners incorrectly characterize as "undisputed" their assertion that ". . . in 1965 the City Officials who selected the design of the Seal did so with the express and specific intent of symbolizing the unique history and heritage of Edmond. The historical collage would be incomplete if any of its elements were removed." (*Pet. Writ Cert.*, p. 3)

Frances Bryan, the contest winner and Seal designer, initially testified at trial that the references in the winning design were historical, but she subsequently admitted that her two entries contained contemporary as well as historical symbols and said that must have been her interpretation at the

time.[12] (Tr. 317-8, 321-7)(**Applt. Appdx.**-Vol. 1, Pl. Ex. 5; Pl. Ex. 7) She also claimed that while the cross had a dual meaning that was both "modern and historical" she was sure that the contest judges intended it as historical although she did not recall any conversations she had with the judges or the city council members. (Tr. 332) Nor were the words, "A great place to grow" historical, and she described them (after a suggestion from the district court) not as a historical reference but as a ". . .projection for the future." (Tr. 333-4)

It is also incorrect to state to this Court that "There was absolutely no evidence presented at trial that the Seal was adopted for the purpose of promoting religion or proselytizing the citizens of Edmond." (*Pet. Writ Cert.*, p. 3) Jerry Priest testified emphatically that the depiction of "Old North Tower" representing the University of Central Oklahoma was placed opposite the "cross" on the Seal to illustrate the particular union between the schools and the churches.[13]

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[12]Ms. Bryan was reminded of her deposition testimony in reference to the Seal finally adopted by the City, "Yes. Everything on there should be representative of the City of Edmond in some capacity, either historical **or present day**." (Tr. 329-31) (emphasis added) Although she tried to disavow this earlier testimony, she admitted she did not list this "error" on her errata sheet when reviewing her testimony, even though she corrected other errors.

[13]
2 Q. And in fact, the town's activities everywhere was engaged
3 in some way or the other with the churches?
4 A. With the churches or the schools. If you didn't go to
5 school or have kids in school or go to a church, you didn't
6 have any social activities.
7 Q. Is there any significance to the fact that the University
8 of Central Oklahoma -- the Old North Tower is on one side and
9 the cross is on the other?

(continued..)

Priest's testimony leaves little doubt that the cross was intended to emphasize Christian culture in the community. The balancing of the cross on one side and the school on the other symbolized a union between the schools and churches.[14]

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[13](...continued)

10 A. Yeah, they were equal or about equal in the development of
11 the civilization that Edmond had at that time. Without one, we
12 would be completely lost. Or the other, we would have been
13 lost. Wouldn't have been any development.
14 Q. I'm sorry. I didn't mean to interrupt you.
15 A. That's okay.
16 Q. Is it fair so (sic) say, then, that the seal, as it was adopted,
17 and certainly within your understanding, was intended to
18 balance off against the -- together, the church, represented
19 by the cross, and the school, together, those were balanced on
20 either side and that's why you put them on the right and the
21 left?
22 A. It could be construed to be true, yes.

Tr. 366 (Priest) (Emphasis added)

[14]Respondents point out that the Tenth Circuit did not analyze the "purpose" element of *Lemon*, so Petitioners' reference to "purpose" testimony is not only inaccurate but irrelevant and gratuitous.

While there was testimony from some of the witnesses, including Frances Bryan, about the significance of the various elements of the Seal, these "explanations" are not readily apparent from a visual review of the Seal. Regardless, these explanations are more relevant to consideration of the "purpose" prong of *Lemon v. Kurtzman* and contribute little to the "effects" prong analysis made by the Tenth Circuit. See *Harris v. City of Zion*, 927 F.2d at 1413 ("First, the purpose for the adoption of Zion's unique seal was primarily sectarian. In its adoption of its seal, Zion abandoned fundamental neutrality and acted with the intent to advance a particular religious viewpoint.") In contrast, the "effects" prong asks "whether, irrespective of

(continued...)

Plaintiff Martin Feldman testified that he first noticed the Seal in 1988 when he first saw a "Welcome to Edmond" display under construction that contained the Seal. (Tr. 22-3) His initial reaction in 1988 was to call the City Manager and suggest that as a Jew, he was offended that the City included this Christian symbol on its official Seal. (Tr. 27-8) Nevertheless, Petitioners inaccurately assert "The evidence at trial showed the Edmond City Seal was used without incident or question from 1965 until 1992 when Respondents and the ACLU demanded that the cross be removed from the Seal." (*Pet. Writ. Cert.*, p. 3)[15]

Finally, Defendants seem to make reference to an identification between the cross on the Seal and "St. John the Baptist Catholic Church," the "*first* church established in the

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[14](...continued)

the government's actual purpose, the practice ... conveys a message of endorsement or disapproval." *Lynch v. Donnelly*, 465 U.S. 668, 687, 104 S.Ct. 1355, 1366, 79 L.Ed.2d 604 (1984). That is not to say that history plays no part in the "effect" or "endorsement" tests, but "... history cannot legitimate practices that demonstrate the government's allegiance to a particular sect or creed." *Allegheny County* 492 U.S. at 603.

[15]This is not the only reference in the *Petition* to the beginning of the controversy. Petitioners make a similar inaccurate assertion in their review of the district court's decision. (*Pet. Writ Cert.*, p. 4)("From 1965 until the ACLU targeted Edmond's Seal in 1992, there was no controversy regarding the Seal. The evidence showed that whatever controversy now exists regarding the Seal was caused by Respondents and the ACLU.") That a controversy does not become public until the public litigation begins should be no surprise when City officials ignore or refuse to act on complaints as they did for Martin Feldman's objections in 1988 and those of Wayne Robinson and the other Plaintiffs in 1992. It seems relatively clear that such Defendants could not identify with the lack of "principled distinction" or "principled basis" that concerned the Tenth Circuit (*Pet. Writ Cert.*, pp. 9a, 17a) and so would not voluntarily change the Seal themselves.

Oklahoma Territory after the Land Run." (*Pet. Writ. Cert.*, p. 3) This reference, as with several other identifications Petitioners make regarding the symbols on the Seal, cannot be reached without resort to evidence extrinsic to the Seal itself because there is **no** identification between the generic cross created by Frances Bryan and this early-day church. A careful reading of the *Petition* shows that the sentence, "St. John the Baptist Catholic Church in Edmond was the *first* church established in the Oklahoma Territory after the Land Run" is put in juxtaposition with a sentence describing the cross without any statement of the connection between them. But even if it were relevant for the "effect" or "endorsement" test, there is nothing in the Seal itself that signifies any historical relationship between this particular Catholic church structure and the cross on the Seal.

REASONS FOR DENIAL OF THE WRIT

I. A CITY SEAL THAT INCORPORATES A "VISIBLE AND CLEARLY DEFINED" LATIN OR CHRISTIAN CROSS IMPERMISSIBLY PROMOTES AND ENDORSES AN ESTABLISHMENT OF RELIGION WHEN THE CITY: OBTAINS TRADEMARK REGISTRATION FOR THE SEAL TO PERPETUATE ITS EXCLUSIVE USE BY THE CITY; PROMOTES IDENTIFICATION OF THE SEAL WITH THE CITY BY USING THE SEAL ON CITY CORRESPONDENCE, DOCUMENTS AND VEHICLES; AND USES THE SEAL TO EXCLUSIVELY IDENTIFY CITY PROPERTY AND PERSONNEL.

The appearance of the Latin cross on the Edmond Seal is an unquestioned government originated representation. There should be no confusion that it is identified with the City since the district court recognized it was adopted for the very purpose of identifying ". . . city property or personnel . . . used on city property, stationery and uniforms." (*Pet. Writ Cert.*, p. 21a)

Moreover, the City trademarked the Seal under Oklahoma Law (*Pet. Writ Cert.*, p. 5a) to secure its distinctive identification with the City to the exclusion of others.[16] It is this exclusive identification that communicates the idea of "endorsement." See *Allegheny County*, 492 U.S. 573, 109 S.Ct. 3086, 3104, 106 L.Ed.2d 472 (1989)("No viewer could reasonably think that it occupies this location without the support and approval of the government. Thus, by permitting the 'display of the creche in this particular physical setting,' . . . the county sends an unmistakable message that it supports and promotes the Christian praise to God that is the creche's religious message." (Blackmun, majority, 492 U.S. at 600)

There should also be no confusion that a Latin cross symbolizes the Christian religion almost exclusively. The Tenth Circuit determined the Christian cross to be ". . .a very familiar religious symbol" (*Pet. Writ Cert.*, p. 12a, Footnote 9, 68 F.3d at 1231) Nor is there any doubt on the issue in several of the other circuits or the district court in this case.[17]

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[16]Although there were numerous examples of the Seal used in the trial, a few are referenced in the Appendix of this *Response* including the City's Trademark registration. (*Res. Appdx.*, pp. 3a-5a, 6a)

[17]A "Latin" cross is ". . a cross whose base stem is longer than the other three arms." *Harris v. City of Zion*, 927 F.2d at 1403 ". . . It is an essential symbol of the Christian faith." *Harris, id.* (". . .there is no doubt that the

(continued...)

The Tenth Circuit followed this Court's teaching from *Allegheny County* that "particular physical setting" is relevant:

> I agree that the creche displayed on the Grand Staircase of the Allegheny County Courthouse, the seat of county government, conveys a message to nonadherents of Christianity that they are not full members of the political community, and a corresponding message to Christians that

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[17](...continued)
structure in front of the building is a Latin cross. There also can be no doubt that a Latin cross is the principal and unmistakable symbol of Christianity as practiced in this country today.") See also *American Civil Liberties Union of Illinois v. City of St. Charles*, 794 F.2d 271 (7th Cir., 1986)("The plaintiffs testified--what is anyway obvious--that the Latin cross (a cross whose base stem is longer than the other three arms) is a symbol of Christianity"); See *Gonzales v. North Township of Lake County, Indiana*, 4 F.3d 1412, 1418 (7th Cir., 1993)("But we are masters of the obvious, and we know that the crucifix is a Christian symbol . . . In fact, the crucifix is arguably the *quintessential* Christian symbol because it depicts Christ's death on the cross and recalls thoughts of his passion and death.")

This singular significance was also recognized by the district court in the instant case in its Order on partial summary judgment ("There is no genuine dispute that the Latin cross is a symbol of Christianity")(R/A, Doc. 61, p. 4, Order, Filed 5/13/1994), and by at least one justice of this Court, see *Pinette*, 115 S.Ct. at 2466, Footnote 3 (Steven, J. dissenting)("Indeed, the Latin cross is identifiable as a symbol of a particular religion, that of Christianity; and, further, as a symbol of particular denominations within Christianity. See *American Civil Liberties Union v. St. Charles*, 794 F.2d 265, 271 (7th Cir., 1986) ('Such a display is not only religious but also sectarian. This is not just because some religious Americans are not Christians. Some Protestant sects still do not display the cross.... The Greek Orthodox church uses as its symbol the Greek (equilateral) cross, not the Latin cross.... [T]he more sectarian the display, the closer it is to the original targets of the [establishment] clause, so the more strictly is the clause applied' ").

they are favored members of the political community. In contrast to the creche in *Lynch* [*v. Donnelly*, 465 U.S. 668, 104 S.Ct. 1355, 79 L.Ed.2d 604 (1984)] which was displayed in a private park in the city's commercial district as part of a broader display of traditional secular symbols of the holiday season, this creche stands alone in the county courthouse. **The display of religious symbols in public areas of core government buildings runs a special risk of "mak[ing] religion relevant, in reality or public perception, to status in the political community**." *Lynch*, *supra*, at 692, 104 S.Ct., at 1369 (concurring opinion). See also *American Jewish Congress v. Chicago*, 827 F.2d 120, 128 (7th Cir., 1987)("Because City Hall is so plainly under government ownership and control, every display and activity in the building is implicitly marked with the stamp of government approval. The presence of a nativity scene in the lobby, therefore, inevitably creates a clear and strong impression that the local government tacitly endorses Christianity"). The Court correctly concludes that placement of the central religious symbol of the Christmas holiday season at the Allegheny County Courthouse has the unconstitutional effect of conveying a government endorsement of Christianity.

> *Allegheny v. Greater Pittsburgh ACLU*, 492 U.S. at 626-27 (O'Connor, concurring) (emphasis added)

Petitioners contend that the appearance of the cross conveys no such message. Such a position ignores the practical reality of how symbols are used in our everyday life.[18]

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[18]"The practical reality is that seals, like flags and other emblems, **do have**
(continued...)

Petitioners state, "Respondents' testimony at trial showed, and they for the most part admitted, that they exhibit unique sensitivities with respect to the personal offense they claim to experience at the sight of the cross on the City Seal." (*Pet. Writ. Cert.*, p. 3, also see p. 13) This statement of Petitioners is most illustrative of the problem in Edmond.[19] That Petitioners

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[18](...continued)
a very distinctive communicative nature. We are conditioned to look for these relationships in the common symbols of our everyday life:

> The Court for decades has recognized the communicative connotations of the use of flags. *E.g., Stromberg v. California*, 283 U.S. 359, 51 S.Ct. 532, 75 L.Ed. 1117 (1931). In many of their uses flags are a form of symbolism comprising a 'primitive but effective way of communicating ideas . . .,' and 'a short cut from mind to mind.' *West Virginia State Board of Education v. Barnette*, 319 U.S. 624, 632, 63 S.Ct. 1178, 1182, 87 L.Ed. 1628 (1943). On this record there can be little doubt that appellant communicated through the use of symbols. The symbolism included not only the flag but also the superimposed peace symbol.
>
> *Spence v. State of Washington*, 418 U.S. 405, 410, 94 S.Ct. 2727, 2730, 41 L.Ed.2d 842, 846-7 (1974)

In *Spence*, this Court also discusses the importance of the context in which the symbol is used for expression. The significant importance in the instant case is that the context is a city seal and not some other use such as a public park where others might expect the speech to not be so exclusively reserved to the state. To that extent, the Tenth Circuit's decision is not inconsistent with *Capital Square Review and Advisory Bd. v. Pinette*, 30 F.3d 675 (6th Cir., 1994) *affirmed*, 115 S.Ct. 2440 (1995)(Klu Klux Klan, a private organization, allowed to erect Latin cross in City Square).

[19]Petitioners also state, ". . . Respondents . . . view all religious symbology (continued...)

would characterize nonchristian Plaintiffs' objections to the inclusion of a "Latin" or "Christian cross" on an official seal as a "unique sensitivity" demonstrates vividly the intolerance of which Plaintiffs complain. It is just inexplicable why Petitioners would mention this in a Petition to this Court after they "stipulated" to standing.[20]

Silently ignoring sacred traditions of Native Americans, Jews, and other religious believers, as well as of persons such as Deists whose religious belief, doubt, or disbelief cannot be so simply classified, Petitioners seem to equate "**our** religious heritage" (*Pet. Writ Cert.*, pp. 8-9, (emphasis added) citing *Lynch*, 465 U.S. at 676-77) only with Christianity by the way they invoke *Lynch* for the principle that in some circumstances government may permissibly commemorate the "religious symbology [of] our nation's foundational institutions [:] . . . references to **our** religious heritage are found in the national motto ('In God We Trust') . . . as well as in the language of

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[19](...continued)
as offensive and inappropriate. . . " (*Pet. Writ Cert.*, p. 13) The suggestion is that Plaintiffs are not spiritual or religious. This is a misrepresentation. Robinson is a minister in the Unitarian faith. Battles and Miller are members of Channing Unitarian Church, which Robinson pastors. (Tr. 50, 80, 99) Feldman is a Jew who once attended Bible studies at a local Baptist Church because of a curiosity regarding religion. (Tr. 21) Their objection to the Seal is not an objection to "all religious symbology" but to a government excluding them by sponsoring a symbol inconsistent with their religious beliefs.

[20]Of course, parties cannot "stipulate" to jurisdiction. See *Bender v. Williamsport Area School District*, 475 U.S. 534, 541, 106 S.Ct. 1326, 1331, 89 L.Ed.2d 501 (1986)("Federal appellate court has a special obligation to 'satisfy itself not only of its own jurisdiction, but also that of the lower courts in a cause under review,' even though the parties are prepared to concede it"). It would be more appropriate to suggest that Defendants chose not to contest either "standing" or "jurisdiction" (Tr. 20, 30, 49, 79, 117).

the Pledge of Allegiance to the American flag" (emphasis added). References to the cross may be equivalent to references to "God" for those who believe Jesus and God were one. For others, of ordinary sensitivity, they are not, and government's equating them with each other conveys a message of exclusion. These Petitioners, for example, see no reason why Jewish Plaintiff Martin Feldman should object to monthly delivery of his own "up close and personal" copy of a Christian cross on his City water bill or why he should feel excluded as a result of receiving it. See *Allegheny County* (Justice Blackmun, majority opinion 492 U.S. at 595 and O'Connor, concurring opinion at 492 U.S. at 625) ("Endorsement sends a message to nonadherents that they are outsiders, not full members of the political community, and an accompanying message to adherents that they are insiders, favored members of the political community.")

For the most part, the "unique sensitivity" of Wayne Robinson, Curtis Battles and Wendell Miller derives from the particular religious ethic suggested by the cross itself, that of "blood sacrifice."[21] The intolerance Petitioners convey by

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[21]Robinson objected to the use of the cross because of his view that it misrepresented the life of Jesus:

17 A. Well, I have a personal and theological argument, a very
18 deeply personal one, that the cross, as presented by the
19 Christian community, is a distortion of the life and death of
20 Jesus of Nazareth. My own reading of our -- of human beings'
21 religious evolution is that there was a time when human beings
22 attempted to relate to God through sacrifices. If the earth
23 quakes and floods and disease had come, you offered a lamb, you
24 offered a goat, you offered a bird, you offered some kind of
25 sacrifice that hopefully, if offered in a well-intentioned
1 sense, would cause God to forgive and to no longer cause the

(continued...)

[21](...continued)

2 floods and so forth to come.
3 But around 500 years Before the Common Era, there was a
4 universal development, Pathagrasa• in Greece, Buddha in India,
5 Confucius in China, the Prophets of Israel, in which instead of
6 offering sacrifices, the message was take responsibility for
7 your life. In fact, the Prophet Isaiah says, "What does it
8 matter if you offer 10,000 sacrifices?"
9 Micah says, "What does the Lord require but to love mercy
10 and walk humbly come before God." And so when Jesus came
11 along, he was in the line of the prophets who was offering
12 course corrections to the detours that people of faith had
13 taken. And so he said -- you've heard an eye for an eye, a
14 tooth for a tooth. He said, "I say unto you, if they strike
15 you on one cheek, turn to them the other cheek. If they try to
16 compel you to go one mile, offer to go two miles. If they try
17 to take your coat, give them your cloak. If they curse you,
18 pray for them. And if they despitely use you, bless them."
19 Well, that was a different understanding from what those of
20 the religious faith in Israel were accustomed to. And that
21 message attracted, evidently, according to the records we have,
22 attracted a great following and people thronged to hear this
23 new understanding of basically non-violence and love for
24 others.
25 When Jesus died, though, because of his message which came
1 into conflict with the religious authorities, the followers of
2 his, as that began to evolve, reverted back to an old earlier
3 form of using sacrifice for our way of relating to God, not
4 self responsibility, but seeing Jesus as "the lamb slain from
5 the foundation of the world" and he would atone for our sins,
6 rather than we correcting our lives by ourselves.
7 And consequently, then, the cross became the quintessential
8 symbol of Jesus' death on the cross whereby his blood became
9 the way that an angry God no longer was angry, and thereby
10 Jesus atoned for our sins, and if we come and confess them
11 through Jesus to God we will be saved from the fiery depths of
12 hell and enter into heaven.
13 But it seems to me that's diverting the message of Jesus,
14 because the message of Jesus was not let someone else take
15 responsibility, it's take responsibility yourself. And the
16 cross became the symbol of that distorted way.

(continued...)

their reference to Respondents' "sensitivity" is that Petitioners' refusal to remove the cross from the government's official emblem is justified because Wayne Robinson's and the other Plaintiffs' desire to void governmental sponsorship of religious symbols antithetical to their beliefs arises only from their "unique sensitivities" (*i.e.*, nonchristian beliefs).

What is the standard in this Court by which these symbolic contexts are judged? In *Allegheny County*, five members of this Court identified as relevant for determining unconstitutional endorsement the ". . .likely reaction of a 'reasonable observer'." See *Capitol Square Review and Advisory Board v. Pinette*, (opinion of Stevens, J., dissenting) 115 S.Ct. 2466, Footnote 4 (citing *Allegheny County*, 492 U.S., at 620, 109 S.Ct., at 3115 (opinion of Blackmun, J.); *id.*, at 635-636, 109 S.Ct., at 3123-3124 (opinion of O'Connor, J.); *id.*, at 642-643, 109 S.Ct., at 3127 (opinion of Brennan, J., joined by Marshall and Stevens, JJ.).[22]

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[21](...continued)

Tr. 118-20 (Robinson)

(*The witness probably intended a reference to "Pythagoras")

[22]As the Tenth Circuit noted in Footnote 8, *Friedman v. County of Bernalillo County* was cited with apparent approval by Justice O'Connor in her concurring opinion in *Allegheny County*, 492 U.S. at 629, as well as by Justice Kennedy in his opinion concurring in the judgment in part and dissenting in part. *Id.* at 661.(". . . no doubt, for example, . . . the [Establishment] Clause forbids a city to permit the permanent erection of a large Latin cross on the roof of the city hall, . . . because such an obtrusive year-round religious display would place the government's weight behind an obvious effort to proselytize on behalf of a particular religion.") The reference also included "*American Civil Liberties Union of Georgia v. Rabun County Chamber of Commerce, Inc.*, 698 F.2d 1098 (11th Cir., 1983)(cross erected in public park); *Lowe v. Eugene*, 254 Ore 518, 463 P.2d 360 (1969)(same)."

The religious effect test standard does not even require a direct connection between a government action and a tangible benefit to religion to render the challenged act unconstitutional. See *Friedman v. Board of County Commissioners of Bernalillo County*, 781 F.2d at 781, ("In addition, the resulting advancement need not be material or tangible. An implicit symbolic benefit is enough. See *Larkin v. Grendel's Den*, 459 U.S. 116, 125, 103 S.Ct. 505, 511, 74 L.Ed.2d 297 (1982)")

Finally, Petitioners confuse "neutrality" with "hostility."[23] This case is not about some right of "free exercise" of Edmond's other citizens to enjoy a view of their sacred symbol in close association with governmental authority.[24] That is what the *Establishment Clause* is all about. Indeed, it is clear that the *Establishment Clause* can be a substantial reason to impose restrictions on free speech or free expression rights.[25]

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[23]See ". . . the Tenth Circuit's decision *requires* hostility toward religion. Under the Tenth Circuit's decision, it is only *religious* symbols that must be excised from the seals. The impact of such a decision is far-reaching and unconstitutional." *Pet. Writ Cert.*, p. 11. Petitioners' unstudied view ignores the purpose and prophylactic effect of the *Establishment Clause*.

[24]See *Pinette*, 115 S.Ct. at 2446 ("It is undeniable, of course, that speech which is constitutionally protected against state suppression is not thereby accorded a guaranteed forum on all property owned by the State. *Postal Service v. Council of Greenburgh Civic Associations*., 453 U.S. 114, 129, 101 S.Ct. 2676, 2685, 69 L.Ed.2d 517 (1981); *Perry Educational Association v. Perry Local Educators' Association*, 460 U.S. 37, 44, 103 S.Ct. 948, 954, 74 L.Ed.2d 794 (1983)").

[25] See *Pinette*, 115 S.Ct. at 2446, "There is no doubt that compliance with the *Establishment Clause* is a state interest sufficiently compelling to justify content-based restrictions on speech. See *Lamb's Chapel [v. Center Moriches Union Free School Dist.]*, *supra*, at [508 U.S. _____], 113 S.Ct., [2141] at

(continued...)

Although Defendants falsely argue Plaintiffs harbor some ill-will toward Christianity, from another view, the Edmond Seal is arguably offensive to persons of sincere Christian devotion. Given the primacy of the cross as a quintessential Christian religious symbol, its appearance on the Edmond Seal as no more than an "equal" to other, secular symbols is a heresy just as incongruous as money lenders in the temple. See *John 2:14-16 (King James)*. But if Petitioners deny this and claim the cross is more "equal" than the other symbols, they proffer the very evidence that sustains Respondents' point in this litigation.[26]

II. A "DIVISION" IN THE CIRCUITS? NOT REALLY. THE ONLY "BRIGHT LINE RULE" IN THIS CASE IS THE TENTH CIRCUIT'S REFUSALS TO RECONSIDER ITS PRIOR PRECEDENT OR TO REACH BEYOND "PRINCIPLED DISTINCTION" AND DISTINGUISH THIS CASE FROM ITS PRIOR DECISIONS OR THOSE OF THE SEVENTH CIRCUIT.

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[25](...continued)
2148-2149, [124 L.Ed.2d 352 (1993)]; *Widmar*,[*v. Vincent*, 454 U.S. 263,] *supra*, at 271, 102 S.Ct. [269], at 275, 70 L.Ed.2d 440 (1981)."

[26]The clearest examples of those who would commandeer the Edmond Seal as a representative forum for their Christian beliefs are the numerous letters from City patrons introduced into evidence that claim some preference or right to display the Seal as a part of their "free exercise right." These letters are in the record and too numerous to reproduce here. (Plaintiffs' Exhibits 61 to 110) To blunt the effect of these exhibits from "reasonable people" who thought they were entitled to draw the inference that the City Seal represented their free exercise of religion, Randel Shadid, the Mayor, characterized these people as "zealots." (Tr. 274, 282, 285, 300)

Defendants contend the Tenth Circuit has divided the circuits because it imposed a "bright line rule" that any religious reference on a seal is unconstitutional.[27] The Tenth Circuit's decision creates no such test. The only "bright line" it recorded was a refusal to immerse itself in minutiae in an effort to somehow distinguish the Edmond Seal from those in *Friedman v. Board of County Commissioners of Bernalillo County*, *Kuhn v. City of Rolling Meadows* or *Harris v. City of Zion*, "We too decline to hold that **some visible and clearly defined religious images are permissible while other identically visible religious symbols are not**." (*Pet. Writ Cert.*, p. 17a)(emphasis added)

Such a position honors precedent and avoids result-oriented decisions. The distinction between a "clearly defined religious image" and one that is not can be ascertained, perhaps, by a simple review of the Bernalillo County and Austin City seals:



Friedman v. Board of County Commissioners of Bernalillo County



Murray v. City of Austin

After comparison, it is at least arguable that the Tenth Circuit's decision in *Friedman v. Bernalillo County* and Fifth Circuit's decision in *Murray v. City of Austin* do offer a "principled distinction." Regardless, whatever that distinction may be does

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[27]Defendants complain, "The Tenth Circuit has now attempted to make the determination easy by singling out *all* visible and clearly defined religious symbols as unconstitutional." (*Pet. Writ Cert.*, p. 14)

not require the superintending force of this Court to "steer" toward some unknown standard that Edmond seeks to impose.

If the circuits seem divided, it is because different facts can produce different results. Once these seals are compared, there should be no surprise the results in *Robinson*, *Harris v. City of Zion* and *Kuhn v. Rolling Meadows* are the same.

Regardless, it should not require a minute comparison of the Fifth Circuit's decision to those of the Tenth and Seventh Circuits to see that the alleged "division" is simply nonexistent, at least from the point of view of the Fifth Circuit.



Harris v. City of Zion



Kuhn v. City of Rolling Meadows

From another view, Defendants' complaint is not that the Tenth Circuit divided with the Fifth Circuit, but that it failed to divide with the Seventh Circuit.

The first step in this comparison is a review of the Tenth Circuit's holding regarding the "effects" test:

> In applying this "effects" test, we must consider the "'particular physical setting'" of the challenged action. *Foremaster*, 882 F.2d at 1491 (quoting *Allegheny County*, 492 U.S. at 597). Further, we evaluate the effect "by an objective standard, which looks only to the reaction of the average receiver of the government communication or average observer of the government action." *Friedman*, 781 F.2d at 781; see also, *Foremaster*, 882 F.2d at 1491 ("We inquire what an average observer would perceive when viewing the action of the City.").

> *Robinson v. City of Edmond*, 68 F.3d at 1229, 1995 WL 611332 at *3, (Applt. Appdx., p. 8a)[28]

Compare this with the specific holding of the test identified as key by the Fifth Circuit in *Murray*:

> The effect of the displays was analyzed under the earlier referenced endorsement test urged by Justice O'Connor in her concurrence in *Lynch*. Specifically,
>
> > [t]he effect of a display [or use of religious symbolism] depends upon the message that the government's practice communicates: the question is "what viewers may fairly understand to be the purpose of the display." That inquiry, of necessity, turns upon the context in which the contested object appears. . . Every government practice must be judged in its unique circumstances to determine whether it [endorses] religion.
>
> *County of Allegheny*, 492 U.S. at 595, 109 S.Ct. at 3102 (brackets in *County of Allegheny*)(citations omitted). To be considered is whether "the challenged governmental action is sufficiently likely to be perceived by adherents of the controlling denominations as an endorsement, and by the nonadherents as a disapproval, of their individual religious choices." *Id.* at 597, 109 S.Ct. at 3103 (quoting *School District of Grand Rapids v. Ball*, 473 U.S. 373, 390, 105 S.Ct. 3216, 3226, 87 L.Ed.2d 267 (1985)). The greatly differing views in *County of Allegheny* notwithstanding, it

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[28]Of course, even if Petitioners show a difference between the results reached by the Fifth, Tenth and Seventh Circuits, this case would still not be appropriate for certiorari when each of these circuit courts have applied the same rule of law, albeit from arguably different perspectives. Correct statements of the law, even if misapplied, are not sufficient reason to expend this Court's scarce resources, as the most recent amendments to this Court's rules spell out with unmistakable clarity. See **Rule 10**, *infra*. Footnote 9.

appears that "the government's use of religious symbolism is unconstitutional if it has the effect of endorsing religious beliefs, and the effect of the government's use of religious symbolism depends upon its context." *Id.* "Under the endorsement test, the 'history and ubiquity' of a practice is relevant ... because it provides part of the context in which a reasonable observer evaluates whether a challenged governmental practice conveys a message of endorsement of religion." *County of Allegheny*, 492 U.S. at 630, 109 S.Ct. at 3120 (O'Connor, J., concurring in part and in the judgment).

In light of the guiding Supreme Court case law, and giving special consideration to the endorsement test used in *County of Allegheny*, we decline to hold that any time a municipality incorporates a religious symbol within its seal, insignia, or logo--regardless of the history, purpose, or context--the *Establishment Clause* is violated. To do so is inappropriate in the difficult area of *Establishment Clause* analysis dominated by subtle nuances, and it accords too little deference to both our nation's religious and cultural heritage and practices and the Supreme Court's guidance. In holding that Austin's insignia does not violate the *First Amendment*, we recognize that two of our sister circuits have found establishment clause violations when municipal seals included religious symbolism. **We do not view this as a split with our circuit**. Instead, it is further evidence, as discussed in *Lynch*, for example, that such cases must be decided on their facts.

Murray v. City of Austin, 947 F.2d at 157. (emphasis added)[29]

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[29]Indeed, the Fifth Circuit goes on to analyze *Harris*, *Kuhn* and *Friedman*, concluding that each of the seals in these cases arguably endorses an establishment of religion in their particular context, again reiterating a determination that Murray's instant holding was not inapposite to that of (continued...)

Upon this test, the "facts" the Fifth Circuit identified as critical are those embodied in the seal itself. In so holding, the Fifth Circuit found the seal not sufficiently remarkable in its context to constitute a violation of the *Establishment Clause*, an arguable and rational determination given the particular physical context of the cross in contrast to the seals in *Harris v. City of Zion*, *Kuhn v. Rolling Meadows* and *Friedman v. Board of County Commissioners of Bernalillo County*.

In this same context, the Tenth Circuit is saying is that the setting of the cross on the Edmond Seal in its proportion commands no "principled distinction" with prior precedent of the Tenth or Seventh Circuits. It is not only logical, but reasonable that the result should be the same.

Is there a "critical mass" of "setting" that triggers an *Establishment Clause* violation? The Fifth Circuit thinks so and the Tenth Circuit has no doubt, at least with regard to the Edmond Seal. A visual demonstration explains this reference. If the Edmond Seal were shrunk to a size and proportion that most Edmond citizens might view while driving into town, on City vehicles or on City buildings, letterhead or envelopes, we quickly demonstrate that the cross is the dominant identifiable image long after the other images shrink into obscurity:



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[29](...continued)
those three cases. See *Murray*, 947 F.2d at 157. (". . . we do not view our decision as conflicting with *Friedman*.") Nor did the Fifth Circuit view the Seventh Circuit's decision in *Kuhn* as a "bright-line" test. 947 F.2d at 157 ("However, we do not read *Harris* to hold that any use of a cross in a seal would cause the same result.")

In short, Edmond's claimed specter of "criss-crossing" conflicts is an "apparition" that only they fear and is not visible to the Fifth Circuit.

The "objective observer" may not always have the full context of the Appendix Exhibit to *Robinson*. (See *Res. Appdx.*, p. 2a) The reduced reference will more probably be the norm than the studied consideration of the full exhibit. In such context, the wisdom of the Tenth Circuit's decision is clear.

Regardless, in the world of "objective analysis," we cannot conclude a mere difference in result is the product of different tests under the law. It seems relatively clear that the Tenth Circuit, Seventh Circuit and the Fifth Circuit all applied the same or similar tests. The results differ because, as is so often the case, the facts are different.

CONCLUSION

The City of Edmond has adopted, trademarked, sponsored, and laid exclusive claim to an emblem which inculcates a symbol that is unmistakable in its identification with the Christian religion. The City then uses that emblem in a manner that promotes a unique identification between the City and that emblem. It requires little analysis and only minimal understanding of the nature of advertising to detect thinly veiled advancement of Christianity by the distinctive emblem.

That the Edmond Seal incorporates other images does not save it under *Lynch*. The primary effect (and not a 51% "effect" of balancing religious symbols with secular symbols) is that of promotion of a religious symbol. In short, although Defendants propose that they can mix "water" and "wine" and get "water," they cannot. The result in the instant case is not "water" but "diluted wine" that is still unmistakably wine. In either case, such symbolism, as a form of "Christian-lite," should be equally unpalatable to Christians and nonchristians alike.

Accordingly, Respondents respectfully request that this Court deny Edmond's *Petition* to review the decision of the Tenth Circuit, a decision in accord with the Circuit's own precedent, not in conflict with precedent from other circuits and

consistent with the decisions of this Court. In the event that this Court should accept certiorari, Respondents would urge the affirmance of the Tenth Circuit's decision upon the same reasons and circumstances.

Respectfully submitted,

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INDEX OF APPENDIX EXHIBITS

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Plaintiffs' Exhibit 49 - Property Sticker used to identify all City property (Approximate actual size) 3a

Plaintiffs' Exhibit 50 - Lapel Pin purchased from city funds by City Manager Max Speegle and distributed to all city employees and to others on behalf of City (Approximate actual size) 3a

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Plaintiffs' Exhibit 33 - Welcome to Edmond Sign at north highway entrance to City - Close-up view 5a

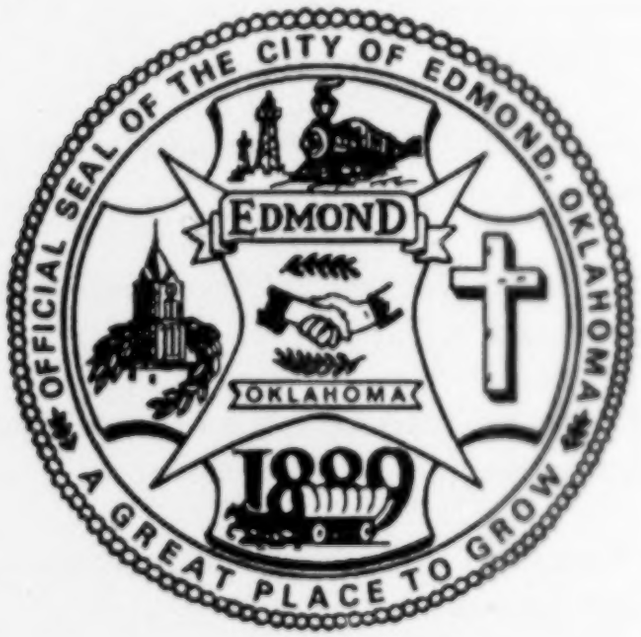
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(**Plaintiffs' Exhibit 49** - Property Sticker used to identify all City property (Approximate actual size))



City Property Sticker
Plaintiffs' Exhibit 49

(**Plaintiffs' Exhibit 50** - Lapel Pin purchased from city funds by City Manager Max Speegle and distributed to all city employees and to others on behalf of City (Approximate actual size))



Lapel Pin
Plaintiffs' Exhibit 50

(**Plaintiffs' Exhibit 47** - Shoulder Patch worn by Edmond City Police Officers)



Police Shoulder Patch
Plaintiffs' Exhibit 47

(**Plaintiffs' Exhibit 32** - Welcome to Edmond Sign at north highway entrance to City)



Plaintiffs' Exhibit 32 (Excerpt)

(**Plaintiffs' Exhibit 33** - Welcome to Edmond Sign at north highway entrance to City - Close-up view)



Plaintiffs' Exhibit 33 (Excerpt)

(Plaintiffs' Exhibit 56 - Certificate of Registration of Trademark (excerpt))

OFFICE OF THE SECRETARY OF STATE
STATE OF OKLAHOMA

CERTIFICATE OF REGISTRATION OF TRADEMARK

REGISTRATION NO. 25568 **EXPIRES: March 26, 2003**

I, the undersigned Secretary of State of the State of Oklahoma, do hereby certify that by virtue of Application for Trademark Registration duly signed, verified, filed and registered this day in the Office of the Secretary of State, **CITY OF EDMOND**, whose business address is **100 E. First, Edmond, Oklahoma 73083**, is the legal registrant in Oklahoma for a term of ten years form (sic) the date hereof, of the following trademark of which said registrant claims ownership: **The Seal of the City of Edmond, which consists of two circles containing a border enclosing the words, "OFFICIAL SEAL OF THE CITY OF EDMOND, OKLAHOMA" and "A GREAT PLACE TO GROW". The area within the seal is divided into five areas consisting of four quadrants and a center area. In the center is a depiction of two hands shaking with olive branches above and below and two (Over)** in Class No. **100**, Class Name **Miscellaneous**, for use in connection with goods or services briefly described as follows: **Municipal services for the citizens of Edmond, Oklahoma**, and that a facsimile of said trademark, a copy whereof is attached hereto, has been duly registered in the Office of the Secretary of State as provided by law. The date claimed for the first use of said trademark anywhere is

September 1965 and the date claimed for the first use of said trademark in Oklahoma is **September 1965**.

In testimony whereof, I have hereunto set my hand and affixed the Great Seal of the State of Oklahoma at the City of Oklahoma City this **26th** day of **March**, 1993.

s/John Kennedy
Secretary of State

By: s/Sandy Burkham

(SEAL)

[reverse page - continued]

banners also above and below. The top banner contains the word "EDMOND" and teh (sic) bottom banner contains the word "OKLAHOMA". The bottom quadrant depicts a conestoga wagon superimposed with the number 1889. The left quadrant contains a depiction of the Old North Tower, encircled with a laurel wreath. The top quadrant depicts two oil derricks and a train. the right quadrant contains the depiction of a cross.

03/26/93 3:44PM 000#7868 A
TRADEMARK $25.00

[Seal Exhibit omitted]
[Certificate of Transcript omitted]

(Excerpts from **Plaintiffs' Exhibits 16, 19** and **21** - City Council Minutes for the City of Edmond in 1965)

Plaintiffs' Exhibit 16, Excerpt from City Council Minutes for July 6, 1965

July 6, 1965

The Edmond City Council met in regular session at 8 p.m. at the City Hall with Mayor Charles E. Johnson presiding. The City Manager, City Attorney, Councilmen Yoesting, Johnson, and Teuscher were present. Councilman Priest was absent.

Minutes of the previous meeting were read and approved.

Motion by Yoesting, seconded by Johnson, that authorization be given THE EDMOND SUN to sponsor a contest for official Edmond seal, and instructed the City Manager to budget $75 prize money. Motion carried, with Mayor and all Councilmen present voting aye.

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Plaintiffs' Exhibit 19, Excerpt from City Council Minutes for August 16, 1965

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Motion by Johnson, seconded by Teuscher, that the appointment of the following persons to serve as judges of the Edmond Official Seal Contest be approved. Motion carried, Mayor and all Councilmen voting aye.

Mrs. Carl Alcorn, 607 Timber Lane
Mrs. Dixie Clegern, 624 Timber Lane
Mrs. E. E. Griffin, 635 Timber Lane
Mrs. Wayne S. Nichols, 800 East Drive
Mr. Joe C. Jackson, 319 E. 13th St.

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Plaintiffs' Exhibit 21, Excerpt from City Council Minutes for August 17, 1965 Special Meeting

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The Mayor appointed Mr. Frank Dobyns to replace Dr. Joe C. Jackson who is on vacation and unable to serve as judge of the Edmond Official Seal Contest. Motion by Priest, seconded by Johnson, that said appointment be approved. Motion carried, Mayor and all Councilmen voting aye.

Plaintiffs' Exhibit 21, Excerpt from City Council Minutes for September 7, 1965

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Mayor Charles E. Johnson awarded Edmond Seal Contest prizes to Mrs. Don Bryan and Mrs. Jon Wright.

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(Excerpts from **Plaintiffs' Exhibits 122, 123, 124, 125** and **126** - Newspaper Stories from Edmond Sun and Edmond Booster from 1965)

Plaintiffs' Exhibit 122, Excerpt from Edmond Sun, Tuesday, July 13, 1965, p. 1, col. 2.

Edmond seal contest slated

A contest, backed by the local governing board, will open here Thursday to design and select an official seal for the City of Edmond.

And there are substantial awards in the offing for the three best seal designers. Designer of the winning seal contest entry will receive a $50 U.S. savings bond, and $25 bonds will go to the designers of the second and third-place awards.

Mayor Charley Johnson proposed the contest at a recent council meeting. "We need an official seal to decorate our city hall stationery, and to be flown as a flag in front of our city hall," he explained. Council promptly endorsed the suggestion and appropriated the money to furnish the savings bond awards.

The contest period is July 15 through August 15. Entries should be mailed or brought to the Edmond Publishing Co. office at 13 S. Broadway. The entry designs should be done with black India ink on the whitest paper available. The entries should not exceed 8 1/2 x 11 inches, maximum size.

The designer may, if he wishes, attach a separate sheet explaining the symbolism or meaning of the various drawings contained in his design.

Mayor Johnson said local artists and possibly a historian will be invited to judge the contest entries.

Entry deadline, remember, is August 15.

Plaintiffs' Exhibit 123, Excerpt from Edmond Booster, August 5, 1965, p. 1, col. 1, Vol. 41, #20.

Deadline nears for entries in city seal design competition

Area sketchers and local history buffs are apparently ignoring a chance to pocket a $50 or $25 saving bond . . . there have been only two entries received to date in the current contest to design an official seal for the City of Edmond.

The contest ends August 15. City officials are seeking designs for a seal to be used on city stationery, official documents and for a city flag.

Contest entries should reflect the factors which make Edmond the finest small city in Oklahoma -- her birth in the Run of '89, the college, and the culture, commerce, agriculture and downright friendliness of her people.

Entries may be submitted at the EPCO publishing office, 13 S. Broadway, and should be of 8 1/2 x 11 maximum size.

Plaintiffs' Exhibit 124, Excerpt from Edmond Sun, Tuesday, August 17, 1965, p. 1, col. 4.

Contest closed, judges picked

Hopeful seal designs for an official city insignia were accepted by the council Monday night with the closing of the recent 30-day contest.

The council received 11 entries in the contest, and promptly named five judges to pick the three winners.

Selected to judge the entries were Dr. Joe C. Jackson, dean of Central State and prominent Oklahoma historian; art instructor Mrs. Carl (Kathryn) Alcorn; long-time city residents Mrs. Dixie Clegern and Mrs. E. E. Griffin; and artist Mrs. Wayne (Gaye) Nichols.

The contest was sponsored by the Edmond newspapers, and prizes are being furnished by the city. First prize is a $50 U.S. savings bond, and second and third prizes are $25 bonds.

The contest was promoted to select an official seal for the City of Edmond to use on city stationery and as the design for a city flag.

Most of the entries stressed Edmond's cultural and commercial factions, its "churchiness," and the friendliness of its residents.

Almost all the entries included in their designs a sketch of Old North tower.

Entries were deposited with City Clerk Woody Bryan to be turned over to the judging committee.

Awards will be announced and presented at the earliest possible date, said Mayor Charlie Johnson.

Plaintiffs' Exhibit 125, Excerpt from Edmond Sun, Tuesday, August 31, 1965, p. 1, col. 2.

Art student has design winners

An Edmond area housewife who once attended the Kansas City Art Institute on scholarship is first place winner in the recent contest to design an official seal for City of Edmond.

She is Mrs. Don (Frances) Bryan, of 54 W. Shore Drive, who actually won two awards. She submitted two entries (there was no restriction on number), and also won third place in the contest.

Second place winner is an Edmond schoolteacher, Mrs. Jon (Caralee) Wright, 119 E. Hurd, who teaches first grade at Dougherty elementary.

Prizes are a $50 savings bond for first place, and $25 bonds for second and third.

Mrs. Bryan and Mrs. Wright will receive their awards from Mayor Charlie Johnson at council meeting next Tuesday night.

Mrs. Bryan is church school superintendent of St. Joseph's Episcopal, and when invited to appear for the awards presentation, noted that she "can make it, but I'll have to hurry right back to a church meeting." Her husband works at Tinker field, and their daughter attends Clegern gradeschool.

Mrs. Wright has taught at Dougherty for the past four years. She took her BA in education at Central State in 1962, and recently was granted her Masters in elementary education at the same school.

Plaintiffs' Exhibit 126, Excerpt from Edmond Sun, Tuesday, September 7, 1965, p. 1, col. 3.

Seal Contest Awards To Be Made

Council to Hear Progress Report

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(Excerpt from story)

First business on the agenda, said Johnson, is presentation of awards to the winners in the recent city seal contest.

Two housewives (one a city schoolteacher) are the award winners. Mrs. Don (Frances) Bryan, of 54 W. Shore Drive, won both first and third places in the contest, and the second place award went to Mrs. Jon (Charalee) Wright, of 119 E. Hurd, who teaches at Dougharty (sic) gradeschool.

Mrs. Bryan won a $50 and a $25 savings bond for her entries, and Mrs. Wright will also receive a $25 bond.

Judges, who did not know the names of the contest entrants, included Mesdames E. E. Griffin, Dixie Clegern, Garland Godfrey and Wayne Nichols, and Frank Dobyns.

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